

SENATE BILL 1778

By Crowe

AN ACT to amend Tennessee Code Annotated, Section
58-2-109, relative to disaster grants.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 58-2-109(c), is amended by designating the existing language as subdivision (c)(1) and adding the following as subdivisions (c)(2) and (c)(3):

(2) Disaster grants administered by the agency are exempt from the requirements of title 12, chapter 3, related to procurement, except that:

(A) Section 12-3-602 applies to such disaster grants; and

(B) The agency must establish procedures to monitor recipient and subrecipient compliance with disaster response and disaster grant terms and conditions.

(3) As used in this subsection (c):

(A) "Disaster grant" means a grant or subgrant awarded to the state or awarded by the state to a person or legal entity, for the furnishing of assistance by the state, whether financial or otherwise, to any person or entity to support a disaster response and recovery assistance program authorized by law;

(B) "Recipient" means a person or entity that directly receives a disaster grant from a federal or state agency to carry out an activity of a disaster response and recovery assistance program; and

(C) "Subrecipient" means a person or entity that receives a disaster grant from a recipient to carry out a disaster response and recovery assistance program.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.